

Delaware County Board of Zoning Appeals, September 25th, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Fo5rCFzY-2Q
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Target Category	delaware_county

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Municipal Meeting Summary Report

Board/Committee: Delaware-Muncie Metropolitan Board of Zoning Appeals

Meeting Date: September 2025 Regular Monthly Meeting

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the September regular monthly meeting of the Delaware-Muncie Metropolitan Board of Zoning Appeals to order at [00:02:06](#).
- **Attendance:**
 - **Present:** Mr. Billington, Miss Fritch, Mr. Ivy, Miss Knapp, Miss Matthew (with a recusal noted on specific items).
 - **Absent:** Miss Kaiser (noted during initial roll call [00:04:28](#), though present later in the transcript).
 - **Presiding Officer:** Identified as the Chair.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:02:19](#) and the administration of the oath of office to new board member Mr. Richard Ivy [00:03:06](#).
 - **Approval of Minutes:** The August 2025 regular monthly meeting minutes were approved by roll call vote (6 Yeses) following a motion and a second [00:04:57](#).
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4. Substantive Business & Board Action

[00:08:56](#) BZA 29-25: Property Division & Multiple Variances

- **Sponsor / Presenter:** Kathy Benise (Ashton Land Surveyor) and Megan Ball (Property Owner).
- **Deliberation Summary:** Request for variances from the Muncie comprehensive zoning ordinance to allow the division of property to separate two existing structures (1238 South Burlington Drive and 1201 South Tennessee Avenue) with reduced lot sizes, setbacks, frontage, building square footage/width, and no off-street parking.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with conditions (parking installation on lot 25B subject to city engineer approval, and completion of the platting process) by roll call vote (5 Yeses, 0 Nos, 1 Recusal by Miss Matthew) [00:13:43](#).

[00:15:23](#) BZA 35-25: Special Use & Variances for Senior Affordable Housing

- **Sponsor / Presenter:** Marissa Canatzer (TWWG Development LLC / McGuff Supply Inc.).
- **Deliberation Summary:** Request for a multi-unit special use and variances for a 98-unit senior affordable housing development at 610 East Wiser Street, featuring decreased front/side setbacks and reduced parking. Speakers in favor included Muncie Mayor Dan Ridenower and Delaware County Commissioner Stephen Brand. Staff noted a 9-0 favorable recommendation from the Plan Commission.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with hardships stated by roll call vote (6 Yeses, 0 Nos) [00:27:30](#).

[00:28:48](#) BZA 36-25: Variance of Use for Tree Trimming Business & Firewood Sales

- **Sponsor / Presenter:** Ashley Goodman (applicant).
- **Deliberation Summary:** Request for a variance of use in a farm zone at 12701 South County Road 300 East to store work vehicles/equipment, allow employees to park personal vehicles, and sell off-site firewood for a tree-trimming business. Delaware County Commissioner Stephen Brand spoke in favor. Neighbors raised severe concerns regarding heavy noise, smoke, and unauthorized open burning.

- **Item-Specific Public Input:**
 - **Lynn Cooper 00:34:28** and **Bill Ellis 00:36:36** spoke in opposition, citing heavy smoke, air quality issues, fire department call-outs, noise, and safety hazards.
- **Action & Vote Disposition:** Approved with conditions (restricted to the applicant only, heavy machinery use limited to 9:00 AM to 5:00 PM, and no on-site business advertising) by roll call vote (5 Yeses, 1 No by Miss Fritch) **00:53:29**.

00:55:24 BZA 37-25: Variance for Tree Removal Ratio

- **Sponsor / Presenter:** Kathy Benise (Ashton Land Surveyor) on behalf of property owners Gerald L. Morgan, Katherine Guthrie, Judith Hoit, and Denise Dockery.
- **Deliberation Summary:** Request for a variance to allow the removal of 70 mature trees without 2:1 replacement for a proposed gas station and self-storage development on McGalliard Road. Muncie Mayor Dan Ridenower spoke in favor, noting future development plans and a potential future wildlife preserve dedication on the southern portion of the land.
- **Item-Specific Public Input:**
 - **Gerald C. Brown 00:56:00** spoke in opposition, citing the long-standing forest, local wildlife (including a sighted bald eagle), traffic hazards, and an excess of existing gas stations on McGalliard Road.
- **Action & Vote Disposition:** Approved with conditions (compliance with federal law regarding wildlife/bald eagles if applicable) by roll call vote (5 Yeses, 1 No by Miss Fritch) **01:09:16**.

00:00:00 BZA 38-25: Accessory Structure Setback & Platted Separation

- **Sponsor / Presenter:** Kathy Benise (Ashton Land Surveyor) and Ron Jones (Owner).
- **Deliberation Summary:** Request for reduced side setbacks and permission for an existing residential garage to stand on a parcel without a dwelling at 30007 and 30009 East Jackson Street. County Commissioner Stephen Brand spoke in favor.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with conditions (garage restricted to personal use only) by roll call vote (6 Yeses, 0 Nos) **01:20:53**.

00:00:00 BZA 39-25: Variance of Use for Event Venue & Signage

- **Sponsor / Presenter:** Slay and Corey Milholland (The Landing at Redwing LLC).
- **Deliberation Summary:** Request for a variance of use in a farm zone at 5757 East Enlow Springs Road to operate an event venue (weddings, concerts, festivals, gatherings) and a 4-ft tall ground sign. Supporters praised community events and safe spaces. Opponents and legal counsel (Drew Hall representing neighborhood residents) cited zoning inconsistencies, commercial intrusion into residential/farm zones, traffic, septic limitations, noise/light pollution, and self-created hardship.

- **Item-Specific Public Input:**
 - **Jack Ty** 01:43:21, **Clint Whitaker** 01:35:09, and **Heather Collins** 01:36:12 spoke in favor.
 - **Drew Hall** 01:37:36, **Cindy Pretty** 01:42:49, **Harold Cidence** 01:45:35, **Chris Pretty** 01:49:18, **Chris Gillum** 01:51:37, **Rick Burch** 01:53:55, **Jean Ferris** 01:55:15, and **Terry Teper** 01:59:17 spoke in opposition, highlighting noise, traffic, zoning violations, and environmental concerns.
- **Action & Vote Disposition:** Approved with conditions (applicant only, all necessary permits obtained, and activity limits aligning with application terms including weekend hour restrictions) by roll call vote (4 Yeses, 1 No by Miss Knapp, 1 Recusal by Miss Matthew) 02:25:10.

02:26:17 BZA 40-25: Variance of Use for Tattoo Business

- **Sponsor / Presenter:** Chad Dwayne Jones.
- **Deliberation Summary:** Request for a variance of use at 4612 South Hoy Avenue to operate a small tattoo studio in an existing accessory structure in a residential zone. County Commissioner Stephen Brand and neighbor Ernest Maxwell spoke in favor.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with conditions (applicant only, no transfer with property, and acquisition of all necessary health/building permits) by roll call vote (6 Yeses, 0 Nos) 02:34:23.

02:35:25 BZA 41-25: Variance for Mobile Home Pier Supports

- **Sponsor / Presenter:** Candace King.
- **Deliberation Summary:** Request for a variance at 8304 East Dotto Street to allow a replacement mobile home to rest on pier supports rather than a permanent foundation due to financial constraints.
- **Item-Specific Public Input:**
 - **Fron Milner** 02:37:25 spoke in favor.
- **Action & Vote Disposition:** Approved with hardships stated by roll call vote (6 Yeses, 0 Nos) 02:38:38.

02:39:56 BZA 42-25: Variance for Pole Barn Height

- **Sponsor / Presenter:** Michael Gregory.
- **Deliberation Summary:** Request for an increased height variance for a new pole barn (16-foot sidewalls, 14-foot doors) at 1224 East 22nd Street to safely store an RV and personal trailers. Mayor Dan Ridenower and Commissioner Stephen Brand spoke in favor.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with conditions (personal storage only, no business use) by roll call vote (6 Yeses, 0 Nos) 02:43:33.

02:44:28 BZA 43-25, 44-25, 45-25, & 46-25: Setback Variances for Residential Properties (Combined Discussion)

- **Sponsor / Presenter:** Damian Brown (Pivotal Housing Partners / Muncie City View Homes LLC).
- **Deliberation Summary:** Requests for reduced front and side street setbacks for multi-unit residential structures and houses on South Elm Street and South High Street due to contractor staking discrepancies during construction. Mayor Dan Ridenower and Commissioner Stephen Brand spoke in favor.
- **Item-Specific Public Input:**
 - **Thomas Ware** 02:51:23 asked about alley closures and setbacks.
- **Action & Vote Disposition:**
 - **BZA 43-25:** Approved with prior variance conditions remaining in effect by roll call vote (5 Yeses, 0 Nos, 1 Abstension by Miss Fritch) 02:54:45.
 - **BZA 44-25:** Approved with prior variance conditions remaining in effect by roll call vote (5 Yeses, 0 Nos, 1 Abstension by Miss Fritch) 02:56:13.
 - **BZA 45-25:** Approved with prior variance conditions remaining in effect by roll call vote (5 Yeses, 0 Nos, 1 Abstension by Miss Fritch) 02:57:29.
 - **BZA 46-25:** Approved with prior variance conditions remaining in effect by roll call vote (5 Yeses, 0 Nos, 1 Abstension by Miss Fritch) 02:58:47.

02:59:35 BZA 47-25: Setback Variances for Storm-Damaged Barn Replacement

- **Sponsor / Presenter:** Bryce Craig.
- **Deliberation Summary:** Request for reduced north and south side setbacks at 601 South Sycamore Street (Gaston) for a replacement barn following storm damage in April. Commissioner Stephen Brand spoke in favor.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved with hardships stated by roll call vote (6 Yeses, 0 Nos) 03:03:11.

03:04:11 BZA 48-25: Setback & Drive-Thru Variances for New McDonald's

- **Sponsor / Presenter:** Lindsay Jordan (Pegasus Futures 2 LLC / McDonald's).
- **Deliberation Summary:** Request for variances for an increased front setback build-to-line on Macedonia Avenue and 29th Street, and to allow a drive-thru lane between the building and the roadways for a new McDonald's restaurant. Updated site plans reflected INDOT access modifications. Mayor Dan Ridenower and Commissioner Stephen Brand spoke in favor.
- **Item-Specific Public Input:**
 - **Stephen Hines** 03:09:21 spoke in favor.

- **Action & Vote Disposition:** Approved with hardships stated by roll call vote (6 Yeses, 0 Nos) [03:10:11](#).
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5. Open Public Comment / Citizen Forum

Note: General public comments were integrated directly into the public hearings for specific agenda items throughout the meeting rather than held in a separate standalone forum.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** The Planning Director noted that no formal director's report was distributed due to the extensive agenda.
 - **Adjournment:** The meeting was adjourned following a motion at [03:11:10](#).
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